



File No.: EXP202309208

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) on ***DATE.2 filed two complaints with the Spanish Agency for Data Protection directed against the users of the social network "Twitter" mentioned in the URLs provided in said complaints. The reasons on which the complaint is based are as follows:

"Publication of a private video in which I appear without my consent. The video has gone viral and I have not given permission for either the editing of the video or its distribution. They were independent takes for a work purpose, not for publication on social networks without my consent, as I have not even been the one who distributed the video. This fact has been reported on Twitter and a response received without any measures being taken."

In the first of the complaints received, it is noted that the video was published on the social network "Twitter" on ***DATE.1 by the user "***USER.1". The video consists of an edited compilation of successive takes (...).

Through the second complaint, the claimant "adds" documentation to the previous complaint.

According to the claimant, "it concerns more videos and photographic montages similar to the one published by the defendant in this file (***USER.1). In this case, other users of the social network Twitter have used the same video or images from that video without my consent. The description of the facts is the same as that sent in previous complaints." The complaint details the URLs leading to the reported publications (22 videos and 2 images).

Along with the complaints, the following documentation is provided, among others:

- Screenshot corresponding to the profile of the user on "Twitter" "***USER.1", "***USER.1". It includes the date "***DATE.1", the text "(...)", and an image of the video in question that corresponds to a photo of the claimant. It is noted that the video has a duration of 38 seconds and has had "1.7 M views".

- Screenshots corresponding to the profiles of Twitter users who disseminated the video or the images. In most of them, the dates are noted (...); texts such as "(...)" etc.; and an image of the video in question that corresponds to a photo of the claimant. The duration of the video (38 seconds) and the number of views in each case (ranging from 30 to 443.8 thousand views) are noted.

SECOND: On ***DATE.2, in accordance with Article 65 of the LOPDGDD, the first of the complaints mentioned in Background First was admitted for processing. The Admission Agreement was notified to the claimant at C/ Jorge Juan, 6

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the same date.

THIRD: On 06/09/2022, two new claims from the claimant were received at the Agency. The claims are directed against new users of "Twitter," "Instagram," and "YouTube" who also disseminated the video in question with comments similar to those previously mentioned, which are added to those included in the previous claims, as well as against the responsible parties of the websites indicated, where the video in question was also inserted. Among these, the entity EL LEÓN DE EL ESPAÑOL PUBLICACIONES, S.A., with NIF A87115226 (hereinafter, the respondent or EL ESPAÑOL), responsible for the website "elespanol.com," is included.

Regarding the respondent, the General Subdirector for Data Inspection accessed the content linked to the URL subject to the claim, verifying that it was information published on ***DATE.2 on the website "elespanol.com." It includes an image of the claimant captured from the video referred to in the proceedings and the text reproduced in the Second Proven Fact. Within the article itself, there is a link to the video publication on "Twitter," on the profile corresponding to the user "***USER.1," with the text "(...)," the indications "(...)," and a button to share the content.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

In the framework of these preliminary investigative actions, on 09/09/2022, the AEPD issued a "Agreement for the Adoption of Provisional Measure" by which EL ESPAÑOL was ordered to remove the content subject to the claim inserted on the website "elespanol.com," accessible through the URL "****URL.1."

In this agreement, which was notified to EL ESPAÑOL on 12/09/2022, the following was expressly stated:

"1. Require EL LEÓN DE EL ESPAÑOL PUBLICACIONES S.A. to remove the aforementioned content related to the claimant from the web addresses from which it is accessible, within a maximum period of 5 calendar days, avoiding, to the extent that the state of technology allows, the re-uploading or re-loading of exact copies or replicas by the same or other users.

2. Require EL LEÓN DE EL ESPAÑOL PUBLICACIONES S.A. to ensure that the removal or modification of the content is carried out in such a way that it prevents access to and availability of the original by third parties, but guarantees its preservation, for the purpose of safeguarding the evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed.

3. Require EL LEÓN DE EL ESPAÑOL PUBLICACIONES S.A. to do so within a maximum period of C/ Jorge Juan, 6

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of 5 calendar days, inform this Spanish Agency for Data Protection about the execution of the measure."

In the Preliminary Investigation Report, the Inspection Services of the AEPD highlight that the video in question went viral after its publication on ***DATE.1 on Twitter by the user "****USER.1" and that, due to this wide dissemination, it can be found on dozens of sites and could be easily located with tags such as "(...)" or "(...)". According to the Inspection Services, this is a replica of the videos that went viral on social media since 2021 regarding the matter "(...)", about which dozens of pages of results can be found in the search engine "Google" using the indicated terms.

On the other hand, it is indicated in said report that EL ESPAÑOL, by means of a letter dated 14/09/2022, communicated the withdrawal of the news, preventing access both externally and through the internal search engine of the newspaper. In this letter, EL ESPAÑOL adds the following:

"For the aforementioned purposes, it should be clarified that de-indexing consists of the process of removing the result from search engines. In no case did EL ESPAÑOL have this association in its internal search engine. The name of the video is the one used by other networks, the name by which it has gone viral on the Internet and whose relevance motivated the publication of the news by EL ESPAÑOL."

"Having stated all of the above, EL ESPAÑOL has assessed and prioritized the right of the interested party. In order to avoid any irreparable harm to the claimant, it has proceeded to adopt the appropriate measures to avoid contributing to the dissemination of the aforementioned video. EL ESPAÑOL, as advised and requested by the AEPD, will ensure the preservation of the information for the purpose of safeguarding the evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed."

On the same day, 14/09/2022, the Inspection Services of the AEPD verified that, as of that date, the content to which the URL "****URL.1" led had been removed.

FIFTH: On 11/07/2023, the General Subdirectorate of Data Inspection accessed the information related to the claimed party in "Axesor" ("Monitoring Report"). (...)

SIXTH: On 25/07/2023, the Director of the Spanish Agency for Data Protection agreed to initiate

sanctioning proceedings against EL ESPAÑOL, for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a) of the GDPR and qualified as very serious for the purposes of prescription in Article 72.1.a) of the LOPDGDD.

In the opening agreement, it was determined that the sanction that could correspond, without prejudice to what results from the instruction, would be 10,000 euros (ten thousand euros) for the indicated infringement.

It was also warned that this infringement, if confirmed, could lead to the imposition of measures, according to Article 58.2 d) of the GDPR.

Furthermore, in said agreement, the provisional measure adopted on 09/09/2022 during the preliminary investigation proceedings was confirmed, ordering EL

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ESPAÑOL, in accordance with the provisions of Article 69 of the LOPDGDD and Article 56 of the LPACAP, abstained from further disseminating the personal data of the claimant referred to in these proceedings. It was also noted that this provisional measure must be maintained until the final resolution of the procedure, in which it must be confirmed, modified, or lifted, without prejudice to the provisions of Article 56.5 of the LPACAP.

SEVENTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, EL ESPAÑOL submitted a written statement of allegations requesting the filing of the proceedings based on the following considerations:

1. The dissemination of the video referred to in the procedure was carried out prior to the launch (...). Various media outlets echoed this fact, such as ***DIARIO.1, highlighting in the informative text the name "(...)". The referenced news can be accessed through the following link: "****URL.2".

In some of these published news articles, the video in question is used to illustrate the news of the launch (the allegations are accompanied by the information available on the websites "****URL.2" and "****URL.3", which include the aforementioned news and what appears to be the video subject to the claim obtained from the social network TikTok. According to the information on these links, the information was disseminated on dates (...)).

Furthermore, using search engines, it is confirmed that, after the video went viral (...) with the casual nickname of "(...)", users following the network associated it (...), thus achieving the apparent desired purpose with the dissemination of the video (the claimed party includes the information available in three posts from Twitter users echoing the news published by "****DIARIO.2", two of which include the video in question; and the information available on the profile of said newspaper on Facebook). So much so that the claimant itself states in its claim that the recordings were created "for a work purpose".

2. EL ESPAÑOL emphasizes that it published the video because it had become a trend on various social platforms, especially on Twitter, receiving millions of views, being widely commented on and shared by thousands of users, thus becoming a matter of public and journalistic interest; as well as due to its social dimension, since the claimant participated in a "challenge" (...), which implies a viral challenge that becomes popular on social networks with the intention of users showcasing their personal experience.

3. The sole intention behind the publication was to inform readers about a relevant phenomenon on social media and its impact on current society, while being unaware of the true commercial purpose that this "challenge" apparently pursued, known months later.

In no way did it intend to participate in the dissemination of the video in question, nor compromise.

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the privacy or dignity of the claimant, but rather echoed the virality and humorous nature that the "challenge" was generating in the virtual community, recognized by this Agency in its writing, and by the public interest in the news.

The focus of the article was centered on analyzing the popularity and social implications of this trend on social networks, rather than delving into the private or personal life of the claimant. At no time was any type of value judgment made nor was attention diverted to sensitive personal aspects.

The role of the media is to provide readers with current and relevant information, and in this case, part of that objective was to capture the viral phenomenon online, as a relevant cultural phenomenon and given the widespread interest in that publication. In fact, the media coverage of this phenomenon was not exclusive to EL ESPAÑOL, as numerous media outlets also echoed the same trend, reinforcing the notion that our action was not isolated, but part of a collective effort to analyze and understand this online trend.

4. The provisional measure adopted by the AEPD and directed at EL ESPAÑOL on 09/09/2022 was complied with immediately by removing the video and all content associated with the publication and preventing access to it, as evidenced. This action was carried out in a context of urgency and with the primary objective of preserving and upholding the honor, privacy, and image of the claimant, demonstrating proactivity and good faith in addressing the situation and fully collaborating in the handling of this matter.

5. Regarding the right to freedom of information and the limits surrounding it, it is crucial to highlight that the loss of disposition and control of the personal data of the interested party occurred prior to the publication made and not as a consequence of it, as pointed out in the agreement to initiate the sanctioning procedure by establishing and grading the proposed sanction. This situation is significant in the analysis of the present controversy, as it emerges as an essential element for understanding the sequence of events and determining the responsibility of the parties involved in the disclosure of the data in question.

On the other hand, it is worth noting that the jurisprudence cited by this Agency to support data processing that may be considered excessive has focused on reproductions of images in criminal contexts, in which the courts have held that the images in question lack relevance to the information to be transmitted.

However, in the present case, the video in question and, by extension, the image of the interested party, are central elements of the newsworthy fact. Therefore, the relevance of the image of the interested party is undeniable in the context of the information that is sought to be disseminated, without this implying an overreach in the exercise of the right to freedom of information.

6. At no time were the identifying data of the interested party included in the published content alongside their image and video, but rather only the image and video were made public.

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reference to a nickname "(...)", which the interested party exposes in their video, and which was manifestly public, given the millions of internet users who had viewed and shared the video in question.

Consequently, and in accordance with the fundamental principle of minimization of personal data, EL ESPAÑOL emphasizes that no technical means were used to prevent the recognition of the image, since the video in question was not originally uploaded or hosted by that party, but rather the technique of embedding was employed, which refers to the inclusion of a video or document from another website by inserting the corresponding code on the EL ESPAÑOL webpage.

Through the embedding technique used, the content is not being transferred to a new audience nor is it disclosed through a specific technique different from the original communication, as interpreted by the Court of Justice of the European Union in cases such as that of Svensson.

7. As of the date of submission of the written allegations, the aforementioned video remains visible on numerous links not controlled by EL ESPAÑOL, accessible through a simple search on the Google

engine by entering the words “(...)”, yielding approximately 28,000 results (a copy of the first results of this search is provided, which includes links to YouTube, TikTok, Twitter, and others, all related to the video subject to the claim; the dates appearing in those links (...)). Furthermore, social networks accumulate millions of views. Only on TikTok, the social network where the video in question has also been widely shared, there are 32.5 million views. It adds that this fact can be observed by visiting the link: “(...)”.

In a digital environment characterized by the rapid spread of content, the influence on the viralization of a video or any other content is a joint result of the actions and reactions of online users, which makes attributing responsibility to EL ESPAÑOL inappropriate. The virality of the video in question cannot be directly or exclusively attributed to EL ESPAÑOL.

The information available on the websites indicated by EL ESPAÑOL is verified, accessible through the following links:

. “(...)”.

Through this link, one accesses a news article published in the newspaper “(...)”, in which the name and first surname of the two promoting individuals are mentioned, one of whom is the claiming party, in addition to a photograph showing both in the company's facilities. This news article is titled “(...)”, and contains the following text:

“(...)”.

EIGHTH: On 15/04/2024, a resolution proposal was made suggesting that the Director of the Spanish Agency for Data Protection sanction EL ESPAÑOL for an infringement of Article 5.1.c) of the GDPR, classified under Article

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83.5.a) of the same Regulation, and classified as very serious for the purposes of prescription in article 72.1.a) of the LOPDGDD, with a fine of 10,000 euros (ten thousand euros). Furthermore, it was proposed that the provisional measure agreed upon on 09/09/2022, during the preliminary investigation proceedings, and confirmed in the agreement to open the present sanctioning procedure, be elevated to definitive status, and that, in such case, EL ESPAÑOL be required to adjust its actions to the personal data protection regulations within the timeframe determined, with the scope expressed in Legal Basis VII of the resolution proposal, and justify before this Spanish Agency for Data Protection the compliance with the corresponding requirement.

The notification of this resolution proposal was duly delivered to the complained party on 16/04/2024 through the Single Enabled Electronic Address (DEHÚ), granting them a period to submit allegations.

NINTH: On 30/04/2024, a written statement of allegations to the resolution proposal was received in which EL ESPAÑOL requests the filing of the procedure or the reduction of the amount of the sanction. From what is stated in this document, the following should be highlighted:

1. Both the GDPR and the jurisprudence have established peacefully that data protection regulations are limited in the face of journalistic exercise, given the essential position that the right to freedom of expression and information acquires in the formation and development of society.

In this regard, it cites Recitals 4 and 153 and article 85 of the GDPR to highlight that, as expressly stated in the GDPR itself, the right to personal data protection is not absolute, and must be reconciled with the norms governing freedom of expression and information, including journalistic expression, and the possibility for member states to establish exemptions or exceptions to the provisions of the aforementioned Regulation for the processing of data for journalistic purposes, if necessary to reconcile the mentioned rights.

It adds that according to the declaration in Constitutional Court Judgment 225/2009, of December 9, freedom of information "reaches its highest level when freedom is exercised by information professionals through an institutionalized vehicle for the formation of public opinion, which is the press understood in its broadest sense," understanding that these professionals, "being subject to greater risks in the exercise of their freedoms of expression and information, required - and enjoyed - specific

protection."

In contrast, the AEPD, in its resolution proposal, implies the opposite, stating that the obligations of EL ESPAÑOL as the data controller are expanded from the moment its activity is based on the exercise of journalism, asserting that it is especially obliged to consider the risks posed by the dissemination of images and voice through a means of communication; or that it should have considered whether the purpose of the information required the dissemination of the image and voice of the complaining party; or the obligation to conduct a risk analysis prior to the publication of the news.

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It warns that such an analysis is operationally unfeasible and would entail a high economic and human cost, although it points out that there is indeed a mechanism for prior review for those news items or information that may conflict with the right to privacy, honor, personal image, and data protection of the subjects of the news, when journalists believe there may be a possible infringement of the rights of the interested parties.

To this end, it informs that journalists receive annual training on fundamental rights, and there is currently a course in progress on data protection. However, it notes that these professionals cannot have an extensive legal knowledge when determining what data is necessary in exercising their profession. Moreover, in a case like the present one, where the video had already gone viral, the data of the interested party had already escaped their control.

On the other hand, the risk of self-censorship resulting from this prior control must be taken into account, classified by the AEPD itself in the "Guide to Risk Management and Impact Assessment in the Processing of Personal Data," from June 2021, as a collateral risk factor with an "High" impact.

In short, it is not understood why the AEPD considers it necessary to conduct a prior analysis of all news that will be published by the newspaper.

2. The requirements for the publication of personal data by media outlets are determined by public relevance and truthfulness, as the AEPD itself considered in its resolution of case number E/03409/2018, in which it declares the preferential position of freedom of information and expression when the communicated facts are deemed to be of public relevance and taking into account the truthfulness of the information.

The AEPD has concluded in this case that we are not dealing with a public figure, but it does not mention the requirement of truthfulness, as it is evident considering that the news is based on the description of a viral video featuring the claimant.

Regarding the requirement of public relevance.

It is argued that the claimant is an anonymous person and is supported by numerous jurisprudential precedents related to individuals who have been victims of a sexual offense. However, in the present case, we are not dealing with a video that shows the commission of a crime, and the viralization of the video in question causes the loss of anonymity, especially when the claimant himself acknowledges that the video had a work-related purpose, for the promotion of an activity, and was disseminated by the claimant himself or by his close circle.

Thus, EL ESPAÑOL considers that the claimant was subject to a "sudden public relevance" derived from the viralization of the video, something that is not yet developed jurisprudentially, but cannot be overlooked.

Nevertheless, it adds that there are indeed rulings that may serve for the

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Case assessment, such as the Judgment of the Constitutional Court 27/2020, of February 24, in which

it is declared that, in the case of the use of the image of an anonymous or unknown individual, the fundamental right to one's image must yield to the right to information when the participation of the initially anonymous person in the newsworthy event was principal or protagonist. In this case, in the opinion of EL ESPAÑOL, the claimant is the protagonist of a news story that would not be properly understood without the video and which enjoys public relevance due to the interest in the facts. The video did not go viral due to the publication of the news; rather, it was the viralization of the video that motivated the news. This fact was considered by the Provincial Court of Salamanca in Judgment 833/2020, of December 10:

“Without overlooking that the dissemination of the two videos referred to in the published news had a great spread through various WhatsApp messages, it was only when the facts recorded in them had social repercussions that the media echoed the news, without adding evaluations or reworking the news.”

In relation to this aspect, the concept of news timeliness must also be taken into account, as referred to in the Judgment of the Constitutional Court 58/2018, of June 4, when it states that “the newsworthy character may also relate to the ‘timeliness’ of the news, that is, its more or less immediate connection to the present time.” Even more so when it comes to viral content, which has a very short duration over time but acquires an extreme degree of relevance.

Thus, while it is true that the claimant was not a person at the time of the initial dissemination of the video, they were at the time the news was published by EL ESPAÑOL.

. Regarding general interest.

The AEPD understands that anonymization techniques should have been applied, such as blurring the image or distorting the voice, so that the claimant would not be recognizable. However, in this case, the publication of the news could not be understood if it were not accompanied by the video, which is an essential and integral part of the news.

The AEPD does not take into account the concept of accessory nature associated with the rights of image and voice, which is regulated as a legal intrusive exception by Organic Law 1/1982, of May 5, on civil protection of the right to honor, personal and family privacy, and one's own image, in its article 8.

The argument of the AEPD could be defended if the video linked to the news had nothing to do with the facts described informatively. But it was precisely the video that was the object of the publication, its reason for relevance. It was a viral video made with the consent of the protagonist, initially disseminated for a work-related purpose and which reached levels of virality and, therefore, of public relevance and recognized interest. With a less invasive treatment of the data, such as blurring the images and distorting the voice, the video would have lost its informative interest and journalistic quality, and would collide with the exercise of the right to freedom of expression.

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information.

The STS 241/2003, of March 14, established that “The concept of accessory nature in the Law (Art. 8.2, c) refers to what is the main object of the news or photographic report (SS October 19, 1992 [RJ 1992, 8079]; not occurring when it does not relate to the content of the written information... The photographic reproduction has an accessory character concerning the written information, which is truthful and has evident public significance or interest. The relationship of the photograph with the information is unquestionable, being irrelevant whether it was this one or another different one.”

In the case analyzed in the Supreme Court Judgment 593/2022, of July 28, regarding the publication by a media outlet of images obtained from a video uploaded to YouTube with the consent of the protagonist, the prevalence of the right to freedom of information is declared, considering, among other reasons, (i) that the disseminated information is verified and holds public interest, (ii) the plaintiff is a person who enjoys public projection, (iii) the disseminated photos do not correspond to intimate or especially private moments and the interested party tolerates their public exposure through the

YouTube platform, (iv) the photos are not disconnected from the disseminated information, (v) the treatment of the information is respectful of the person, and (vi) the disseminated photographs were uploaded to YouTube with the consent of the interested party, in such a way that anyone can access them, although it is not recorded that the interested party had given their consent for their dissemination in the programs of the defendant.

All the requirements identified by the Supreme Court are present in this case, so the actions of EL ESPAÑOL are protected by the aforementioned article 8.2 of Organic Law 1/1982.

It should also be taken into account what is reflected in the Order of the Constitutional Court No. 176/2007 (First Chamber, Section 2), of March 1, in which the following is declared:

2. (...) Despite all this, and as could not be otherwise, the right to one's own image yields to other constitutional goods. In particular, "when the own -and prior- conduct of the holder or the circumstances in which they find themselves justify lowering the barriers of privacy so that the external or public interest that may collide with it prevails" (STC 99/1994, of April 11, FJ 5).

In view of the circumstances of the case, this time such interest is undeniable, as it can be said that this time the news was the photograph itself. (...) As we stated in the STC 56/2004 and 57/2004, of April 19, "the image significantly enriches the content of the message directed at the formation of a free public opinion," so that if all individuals whose image is reproduced neutrally in newspapers or television could demand a special informative significance, graphic information would become practically impossible, undermining the right of citizens to receive truthful information and that of journalists to elaborate and disseminate it.

Applying this criterion to the current case, we must conclude that the photograph was sufficiently newsworthy to deprive its protagonist of the control faculties over its graphic reproduction attributed to them by the right to one's own image (...).

Additionally, EL ESPAÑOL points out that the analysis conducted by the AEPD on the effective necessity of publishing personal data contravenes previous resolutions, such as that issued in proceedings number E/03409/2018, already cited, in which

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considered that assessing the proportionality of the processing of personal data for informational purposes could result in a form of administrative censorship.

In conclusion, it finds that in the present case the requirements of public relevance, truthfulness, and accessory nature imposed constitutionally are met, so the AEPD should not make assessments regarding the proportionality of the published data.

3. Regarding the determination of the proposed sanction amount.

In the alternative, EL ESPAÑOL argues that the amount of the sanction is not proportional in relation to the analyzed facts and requests a reduction of its amount based on the following reasons:

- The loss of disposition and control of the personal data had already occurred at the time of the publication of the news, with the dissemination of the video on social networks and its viralization.
- The actions of EL ESPAÑOL cannot be understood as negligent, but rather consistent with the exercise of journalism and with the right to freedom of information and expression, considering that the informative content of the news would be void if the video had been edited to anonymize the personal data. Without data, there would be no news itself.
- The responding party understands that there are other mitigating factors applicable to the case:
- The specific protection of information professionals, which is not only not taken into account, but the AEPD seems to demand a greater and disproportionate diligence considering the economic and human costs, through the preparation of a risk analysis prior to the publication of each news item.
- The essential work for society carried out by the media outlet.
- The purpose pursued by the claimant with the complaint was to prevent the video from continuing to go viral, and in this regard, the news was removed as soon as it was requested by the AEPD. In this

respect, the resolution of the file of proceedings E/02643/2018 should be taken into account, in which it is considered that the purpose pursued with the complaint had been satisfied.

4. The total removal of the link subject to this complaint has been carried out, so that it is not accessible even through the internal systems of EL ESPAÑOL.

PROVEN FACTS

FIRST: On ***DATE.1, a user of the social network "Twitter" published on their profile a video consisting of a montage of successive shots (...). The image and voice of the claimant were clearly discernible in that recording.

SECOND: The claimant has stated that the publication of the video mentioned in Proven Fact One was made without their consent.

THIRD: On ***DATE.2, the entity EL ESPAÑOL published on its website "elespanol.com" a news article about the dissemination on social networks of the video mentioned in Proven Fact One. This news article, which was accessible through the URL ("***URL.1"), included an image of the claimant captured from that video and the following text:

<(photograph captured from the video, corresponding to an image of the claimant, with the caption "(...).")
(...)

FOURTH: On 14/09/2022, in compliance with the provisional measure adopted by the AEPD, EL ESPAÑOL removed the news article mentioned in Proven Fact Three, preventing access both externally and through the internal search engine of the newspaper.

FIFTH: The Inspection Services of the AEPD have verified that the video mentioned in Proven Fact One went viral after its publication on ***DATE.1 on Twitter. Due to that wide dissemination, it could be found on dozens of sites and easily located with a search engine using tags such as "(...)" or "(...)".

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to the allegations regarding the proposed resolution

1. Obligations of a media outlet as the data controller.

Requirements for the publication of personal data by media outlets.

EL ESPAÑOL begins its written allegations to the proposed resolution by highlighting that the personal data protection regulations are limited in the face of journalistic exercise, due to the essential position that it acquires for society.

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the right to freedom of expression and information, and that jurisprudence grants professionals in the field of information specific protection as they are subject to greater risks (STC 225/2009, of December 9).

And it continues to indicate that, on the contrary, the proposed resolution implies that the obligations of EL ESPAÑOL as the data controller are expanded from the moment its activity is based on the exercise of journalism, asserting that it is especially obliged to consider the risks involved in the

dissemination of images and voice through a medium of communication; or that it should have considered whether the purpose of the information required the dissemination of the image and voice of the claimant; or the obligation to conduct a risk analysis prior to the publication of the news.

This Agency does not deny that the fundamental right to the protection of personal data, like all rights, is limited by other fundamental rights, in this case by the freedom of expression and information. It is this circumstance that requires, in each specific case, to weigh or reconcile the conflicting rights. Thus, it is precisely provided in Recitals 4 and 153 and Article 85 of the GDPR invoked by EL ESPAÑOL when they state that the right to the protection of personal data is not an absolute right, but must maintain a balance with other fundamental rights, such as freedom of expression and information, including journalistic expression. To such an extent that Recital 153 and Article 85 of the GDPR not only obligate Member States to reconcile the rules governing these other rights with the right to the protection of personal data under the GDPR, but also to adopt legislative measures that establish exceptions or exemptions from certain provisions of that Regulation in relation to the issues listed in these provisions, among them the general principles, if required to reconcile such rights. This Agency does categorically deny, however, that the right to freedom of information limits the right to the protection of data in the manner intended by EL ESPAÑOL, which suggests that the rules on the protection of personal data do not apply when data processing is carried out within the framework of journalistic activity, by reason of the subject. It even states that it does not consider prior analysis of all news to be published necessary.

The arguments defended in this act, which reproduce those valued in the proposed resolution, are deemed appropriate and relevant when it is stated that the media must take into account the risks involved in the data processing they carry out when disseminating news and that they are obliged to pay special attention and to establish the necessary safeguards to comply with the rules provided for the respect of the right to the protection of personal data.

Particular consideration is given to the professionalism attributed to the media, recognized by our jurisprudence to establish a higher level of diligence in compliance with the norm. In this regard, the Judgment of the National Court of October 17, 2007 (rec. 63/2006) declared that, given that these are entities whose activity involves continuous data processing, “...

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The Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the offender does not behave with the required diligence. In assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the individual, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it is necessary to insist on rigor and exquisite care to comply with the legal provisions in this regard.

In any case, it is not the AEPD, as noted by EL ESPAÑOL, that demands this special responsibility, but rather it is the applicable regulation itself that evaluates circumstances such as risk or professionalism, as previously indicated, the context, or the state of technology, among others. Accepting the position of EL ESPAÑOL would be tantamount to emptying the right to data protection of its content simply because the processing is carried out by an institutionalized media outlet or by an information professional, with no economic or human reason justifying the non-application of the regulation to an obligated subject, nor can the lack of legal knowledge of these professionals prevent their activity from being subject to the provisions of the GDPR and the LOPDGDD. It cannot be said that there is self-censorship as a consequence of the application of the regulation, but rather compliance with a generally applicable norm, which also binds media outlets and their professionals.

Until such legislative measures are adopted that define the exceptions or exemptions referred to in Article 85 of the GDPR, the limits on the application of this Regulation and the LOPDGDD must be established in accordance with the regulatory provisions and interpretative criteria applicable in each

case to carry out the indicated balancing or reconciliation of conflicting rights.

Among these criteria are those indicated by the entity being claimed against, such as the public relevance of the interested party or their participation in the newsworthy event, the truthfulness of what is published, or its informational interest. However, it is essential to prioritize the principles and rules to which the processing of personal data is subject according to their own regulatory norms.

This same act refers to those interpretative criteria to analyze the case and conclude the infringement, having considered, as will be explained later, that there was no informational interest in the dissemination of the personal data of the claimant and that this is an anonymous person. But, above all, it applies the principle of data minimization regulated in Article 5.1.c) of the GDPR and assesses the context in which the data processing occurs, its purpose, and proportionality concerning the pursued end, all in accordance with the norms regulating the protection of personal data.

The aforementioned criteria, which EL ESPAÑOL refers to as requirements for the publication of personal data by media outlets, are more related to the right to honor, personal and family privacy, and one's own image, regulated by Organic Law 1/1982, of May 5, which establishes in Articles 7 and 8 the actions considered to be unlawful intrusions within the protection scope defined by this regulation.

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The analysis of this regulation responds to the criteria alleged by EL ESPAÑOL, regarding which there is abundant jurisprudence that can be consulted when addressing aspects of interest to decide a matter related to data protection, to the extent that both rights protect the intimacy and privacy of individuals. However, it must always be kept in mind that these are criteria that serve to guide and inform about the aspect in question, and whose application must yield to the principles set forth in the data protection regulations when assessing a case related to this matter. In short, the circumstances alleged by EL ESPAÑOL cannot be the only ones considered, in such a way that the applicable personal data protection norms are excluded.

On the other hand, having established the general consideration above, regarding the "requirements" mentioned by EL ESPAÑOL, the following should be indicated in contrast:

- a) The claimant is an anonymous individual, and this condition is not altered by the fact that the audiovisual content published by EL ESPAÑOL went viral on social media, a consequence that results from the actions of third parties without the accredited intervention of the claimant.
- b) The veracity and timeliness of the published information do not influence, from the perspective of data protection, the proper use and dissemination of the image of the claimant. The respondent alleges that the news would not be adequately understood without the video, but does not explain how the dissemination of that content would affect the news after it has been subjected to an anonymization process, as defended in this act, nor why this anonymization would diminish the journalistic interest and conflict with the right to freedom of information.

2. Regarding the determination of the proposed sanction amount.

For the same reasons stated above, the request for a reduction of the fine amount requested by EL ESPAÑOL based on the status of the infringing party, considering the protection of information professionals and the social work carried out by the media outlet, must be rejected. Furthermore, the informative content of the news would have been rendered void with the anonymization of the video.

Additionally, it is noted that the loss of disposition and control over personal data had already occurred at the time of the publication of the news, with the dissemination of the video on social media and its viralization. This circumstance does not exclude that the actions of EL ESPAÑOL have that effect and can thus be considered when evaluating the severity of the infringement.

Finally, the respondent considers that the fact that the news was removed as soon as it was requested by the AEPD constitutes a mitigating factor. It cites as an example the resolution issued in file E/02643/2018, in which the closure of the proceedings was resolved, considering that the purpose of

the complaint had been satisfied.

This Agency understands that these are not comparable cases. In the present case, the
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The removal of the content subject to the claim was ordered by this Agency as a provisional measure, so that compliance with the respective requirement is not considered a mitigating factor in the assessment of the sanction.

3. The total elimination of the link subject to the claim has been carried out, so that it is not accessible even through the internal systems of EL ESPAÑOL. As indicated in the following Foundations, with the removal of the video, EL ESPAÑOL simply complies with the regulations and addresses the resolutions of this supervisory authority, which are mandatory, so that such removal does not serve to modify its responsibility for the analyzed facts.

III

Image and voice as personal data and other preliminary issues

The physical image and voice of a person, according to Article 4.1 of the GDPR, are personal data as they make the person identifiable, and their protection is therefore the subject of said GDPR:

“‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person;”

Report 139/2017 from the Legal Office of this Agency states that “the image as well as the voice of a person is personal data, just as any information that allows determining, directly or indirectly, their identity will be.”

The physical image and voice of a person, according to Article 4.1 of the GDPR, are personal data and their protection is therefore the subject of said Regulation.

Thus, the processing of a person's image and voice is subject to data protection regulations. Article 4.2 of the GDPR defines the concept of “processing” of personal data.

“any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, comparison or interconnection, restriction, erasure or destruction.”

The CJEU (Second Chamber) ruling of February 14, 2019, in case C 345/17, Sergejs Buivids, states the following:

“It should be considered that publishing, on a video-sharing website where users can upload, view, and share videos, an audio recording, such as the one in question, which contains personal data, constitutes a total or partially automated processing of that data, within the meaning of Articles 2(b) and 3(1) of Directive 95/46.”

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On the other hand, it is important to highlight that individuals have the power of disposition over their personal data, as well as over its dissemination.

Thus, the Constitutional Court ruling STC 292/2000, dated November 30, declares that “the content of the fundamental right to data protection consists of a power of disposition and control over personal data that enables the individual to decide which of those data to provide to a third party, whether the State or a private individual, or which data this third party may collect, and that also allows the

individual to know who possesses that personal data and for what purpose, being able to oppose that possession or use. These powers of disposition and control over personal data, which are part of the content of the fundamental right to data protection, are legally specified in the authority to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on one hand, the authority to know at all times who has that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses."

IV

Unfulfilled Obligation

The inclusion of a person's image or a video containing their image and voice in journalistic publications, under conditions that identify or make them identifiable (without applying any technique that prevents their identification), in this case, also alongside their name, constitutes a processing of personal data. Therefore, the entity that carries out this processing is obliged to comply with the principles and obligations regarding data protection that apply to the data controller as provided in the GDPR and the LOPDGDD.

Such principles and obligations do not diminish simply because we are dealing with a data controller that is a media outlet.

Moreover, the responsible entity is particularly obliged to consider that the dissemination through a media outlet of the image and voice of the claimant and their name, enabling their identification by third parties, implies a greater risk for the interested party, making it very likely that they may suffer harm to their rights and freedoms. Therefore, it must exercise extreme caution so that it cannot be concluded that such data processing is not proportional or necessary in relation to the information purposes pursued.

Thus, in general terms, it must take into account the principle of proactive responsibility, established in Article 5.2 of the GDPR, the assessment of risks, and the implementation of appropriate security measures. Obligations that are even more relevant when the risk is particularly sensitive.

In this regard, and regardless of what the legal basis legitimizing the processing may be, every data controller must respect the principles of processing set out in Article 5 of the GDPR. As far as the present case is concerned, it is worth highlighting the principle of "data minimization" as stated in Article 5.1.c) of the GDPR.

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GDPR, which establishes the following:

"1. Personal data shall be

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

It is understood that the processing of personal data must be limited to what is necessary to achieve the objective, that is, when the purpose cannot be reasonably achieved without the processing of that personal data.

This is related to the principle of purpose limitation in Article 5.1.b) of the GDPR, and it only leads to precise results if the specific purpose is well defined by the data controller and is linked to the proportionality and necessity of such processing.

The relevance of the data refers to its indispensability for obtaining the result, and the options available to the controller must be reviewed to comply with this principle in each processing operation.

When the responsible entity is a media outlet, it must keep in mind the aforementioned principle of data minimization whenever it intends to use personal data in a journalistic article.

The present procedure is initiated because the entity EL ESPAÑOL published, on the website

"elespanol.com", a news article about the dissemination of videos on social media, in which the text

referred to the name of the claimant (“(...)”) and was illustrated with a photograph of the claimant, taken from a video that was published and widely disseminated through the social network “Twitter”. The image of the claimant was clearly visible in that photograph.

In the same article, links are inserted that lead to the video in question, in which the image and voice of the claimant are also clearly shown, which were not properly anonymized using any suitable technique for that purpose.

As noted in the Proven Fact First, the video consists of a montage of successive shots in which the claimant looks at the camera (...).

This specific video is referred to in the news published by EL ESPAÑOL. It is information published on ***DATE.2 on the website “elespanol.com” accompanied by the repeated video and a screenshot taken from it (including a link to the video publication on “Twitter”, on the profile corresponding to the user “***USER.1”, “***USER.1”, with the text “(...)”, the indications “(...)”, and a button to share the content).

In this article, EL ESPAÑOL informs about (i) the content of the video, highlighting some of the dialogues that take place between the people appearing in it; (ii) its wide dissemination on social media, which it considers to be due to its entertaining nature; and (iii) the thousands of comments it has generated, some of which are transcribed in the same article.

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EL ESPAÑOL should have considered whether the purpose of the information required the dissemination of the image and voice of the claimant contained in the video in question without applying any anonymization process to it, or whether the indication of the name in the text of the published article was truly necessary for the intended purpose; or whether this purpose, on the contrary, could have been perfectly achieved without the identification of the holder of the personal data.

This Agency understands that the information that EL ESPAÑOL intended to convey to the general public did not require such use and dissemination of the personal data of the claimant. Based on this, it follows that there has been a processing of personal data in clear violation of the principle of data minimization.

This conclusion is not shared by EL ESPAÑOL. This entity, in its allegations regarding the initiation of the present procedure, does not dispute the processing of personal data carried out, but rather the fact that it may be considered as constitutive of an infringement and, therefore, subject to sanction.

Firstly, the entity being claimed highlights that the video in question was disseminated a month prior (...), which was also the subject of journalistic attention in other media. EL ESPAÑOL implies that the dissemination of this content via the internet was intentional and that with this dissemination, the claimant achieved “the apparent desired purpose.”

Furthermore, it emphasizes that the video, in which the claimant refers to their name or nickname “(...)”, became a trend on various platforms and mass-following social networks (Twitter, YouTube, TikTok), being commented on and shared by thousands of users, and continues to be visible through thousands of links that can be accessed via a search engine using the indicated nickname as a criterion. Based on this, it considers that the loss of disposition and control over the personal data of the interested party occurred prior to the publication that has led to the present proceedings and not as a consequence of it, a matter that EL ESPAÑOL deems essential to determine its responsibility. In this regard, it points out that the viralization of content is a joint result of the actions and reactions of online users, and therefore cannot be directly or exclusively attributed to EL ESPAÑOL.

On the other hand, regarding the principle of data minimization and its consideration in the present case, EL ESPAÑOL argues that the data used in the published news was manifestly public and that no technical means were used to prevent the recognition of the image, since the video in question was not originally uploaded or hosted by that party, but rather the technique of embedding was used, which refers to the inclusion of a video or document from another website by inserting the corresponding

code into the EL ESPAÑOL webpage.

However, these circumstances, even if all taken as true, do not alter EL ESPAÑOL's responsibility for the analyzed facts, as none of them excuses compliance with data protection regulations by that entity from the very moment it decides to collect and use the data in question. Neither does the fact that there may be possible responsibilities of other third parties, or other sanctionable conduct, exempt from compliance.

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responsibility to that entity. The existence of possible prior breaches by third parties does not exempt the media outlet from the obligation to conduct a risk analysis prior to the publication of the news. EL ESPAÑOL, as a media outlet and in its capacity as data controller, decides what and how to publish. It could choose to publish the video as is, opt not to publish it, or decide to distort the image and voice of the claimant in order to prevent recognition by third parties.

Any processing operation carried out in the context of the party being claimed (in this case, the dissemination of personal data in connection with the news) must be attributed solely to it, regardless of the processing operations that may have been carried out previously by other parties, which in no case exempt it from its responsibility. Media outlets, as data controllers of multiple data they handle in the exercise of their journalistic work, must know and comply with the data protection regulations, applying, among others, the principle of data minimization enshrined in Article 5.1.c) of the GDPR.

It should also be noted that EL ESPAÑOL was not certain that the video had been intentionally disseminated by the claimant, as it was taken from an unidentified user of the social network "Twitter." Even if such intentional dissemination had occurred, it cannot be interpreted in the manner intended by EL ESPAÑOL in its allegations. In cases like this, it is solely up to the interested party to decide on the use of their personal data, as has been stated, and this does not change by the fact that personal data is accessible via the Internet, regardless of its origin.

In Judgment No. 91/2017, dated 15/02/2017, the Supreme Court addressed a case in which the defendant (media outlet) used a photograph taken from the plaintiff's Facebook profile to illustrate a news article published in the print edition of a newspaper. In this Judgment, it is considered that the right to information legitimizes the actions of the media outlet, which provides truthful information about facts or individuals of public relevance, relevance that is attributed to information about facts of criminal significance. However, regarding the use of that photograph, it states the following:

"That in the account opened on a social network on the Internet, the holder of the profile has 'uploaded' a photograph of themselves that is accessible to the general public does not authorize a third party to reproduce it in a media outlet without the consent of the holder, because such action cannot be considered a natural consequence of the accessible nature of the data and images in a public profile on a social network on the Internet. The purpose of an open account on a social network on the Internet is the communication of its holder with third parties and the possibility for those third parties to access the content of that account and interact with its holder, but not for the image of the account holder to be published in a media outlet.

The consent of the image holder for the general public, or a specific number of people, to view their photograph on a blog or on an open account on the website of a social network does not entail authorization to use that photograph and publish or disclose it in a different manner..."

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"The requirement to safeguard the right to information cannot mean that the fundamental rights of those affected by the exercise of that right are left devoid of content, which should only be sacrificed to the extent necessary to ensure free information in a democratic society, as established by Article 10.2

of the European Convention on Human Rights (SSTC 171/1990, of November 12, FJ 5, and 121/2002, of May 20, FJ 4). And the public interest raised by the violent event that justified the defendant's newspaper reporting on it, even with the identification of those affected by the event, did not require or justify the publication of the victim's image obtained from their social media profile without their express consent."

In the same way, the technique used to capture or disseminate the video does not influence this matter. In this regard, EL ESPAÑOL has stated that the video in question was not originally uploaded or hosted by that party, but rather the technique of "embedding" was used, which refers to the inclusion of a video or document from another website by inserting the corresponding code into the EL ESPAÑOL webpage.

Regarding this issue, it should be noted, on one hand, that the published news not only included the link that allowed access to the video on another website, but the news was also illustrated with a photograph of the claiming party taken from that video. On the other hand, it is important to consider that the inclusion of these links constitutes a processing of personal data, according to the definition of processing established in Article 4 of the GDPR, which considers as such any operation or set of operations performed on personal data such as "communication by transmission, dissemination, or any other form of enabling access, comparison, or interconnection."

Regarding the use of this embedding technique, EL ESPAÑOL also points out that the content is not transferred to a new audience nor is it disclosed through a specific technique different from the original communication, as interpreted by the Court of Justice of the European Union in the Judgment of 13/02/2014, issued in case C-466/12 (known as the Svensson Case).

However, this Judgment addresses issues related to intellectual property, so the interpretations it makes regarding the consequences arising from the incorporation of links on a website that lead to content protected by such rights hosted on other sites are not transferable to the present case. In any case, from what is stated in that Judgment regarding the use of these links, it is important to highlight the following:

"20. It follows from the above that, in circumstances such as those of the main dispute, the act of providing clickable links that lead to protected works must be qualified as a 'making available' and, consequently, as an 'act of communication' in the sense of the aforementioned provision."

On another note, the defendant entity states in its allegations that it has demonstrated its proactivity by immediately complying with the provisional measure ordered by this AEPD, removing the video and all content from the publication. However, this action, with which EL ESPAÑOL simply complies with the regulations and attends to the resolutions of this supervisory authority, which are mandatory, cannot serve to modify its responsibility for the analyzed facts.

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V

Fundamental Right to Freedom of Information

EL ESPAÑOL, in its allegations, highlights that the popularization of the video became a matter of public and journalistic interest, as a cultural phenomenon and due to its social impact, motivating its sole intention to inform readers, without compromising the privacy or dignity of the claimant and without delving into their personal life or sensitive personal aspects, and without making any value judgments.

It adds that the focus of the published article centered on the popularity and social implications of that trend on social media, providing readers with current and relevant information, in compliance with the media's role.

Evidence of this, according to EL ESPAÑOL, is the fact that other media outlets also echoed the same trend.

It also considers that the image and name of the claimant are central elements of the newsworthy fact, in the context of the information being sought to be disseminated, without this implying an overreach in

the exercise of the right to freedom of information.

On the other hand, it emphasizes that the jurisprudence cited by this Agency to support a treatment of data that may be considered excessive has focused on reproductions of images in criminal contexts, in which the courts have held that the images in question lack relevance for the information to be transmitted.

However, in the present case, as we will explain, the treatment carried out by EL ESPAÑOL within the framework of freedom of information has been excessive, as there is no public interest in the dissemination of the image and voice of the claimant, with indication of their name. Maintaining such image and voice without anonymizing (without blurring the image and without distorting the voice, for example) does not add any value to the information, under which pretext it seems that those data have been disclosed, which clearly make the person identifiable, even more so if the name is specified. When weighing the conflicting interests and considering the concurrent circumstances of this case, namely, the particularly sensitive nature of the personal data and the impact on the privacy of the person (the claimant), the interest of the holder of the right to the protection of their personal data and to not have it disseminated deserves greater protection than the purported public interest in its dissemination.

It is true that we are faced with a fundamental right, that of the protection of personal data, which is not absolute, since it may yield in cases where it is outweighed by other rights and freedoms that are also constitutionally recognized and protected, such as, for example, the fundamental right to freedom of information, being weighed on a case-by-case basis.

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In the conflict between the fundamental rights to freedom of information and the fundamental right to the protection of personal data, even though equal degrees of protection are recognized for both constitutional rights, it is usually the former that is granted precedence by our courts, after evaluating and weighing all the elements at play.

However, preponderance does not mean prevalence when, considering all the circumstances present in a specific case, the limits established by law and jurisprudence are exceeded.

In this regard, the Article 29 Working Party in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, which is fully transferable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

Limits to the Fundamental Right to Freedom of Information.

That said, the fundamental right to freedom of information is also not absolute. We can observe very clear limits established by the courts in the civil sphere, in relation to the right to honor, personal and family privacy, and one's own image.

Thus, we will cite, among others, the Constitutional Court ruling STC 27/2020, of February 24, 2020 (appeal for protection 1369-2017), which states, in relation to the image of a person, and starting from the incontrovertible fact that it makes them identifiable, that “...the debated issue is reduced to weighing whether the non-consensual reproduction of the image of an anonymous person, that is, someone who is not a public figure, but who suddenly and involuntarily acquires a role in the newsworthy event, in this case as a victim of the failed homicide attempt by their brother and the subsequent suicide of the latter, constituted an unlawful intrusion into their fundamental right to their own image (Article 18.1 CE).

[...]

...that criminal events are newsworthy occurrences, even regardless of the private character of the

person affected by the news. However, the limit lies in the individualization, directly or indirectly, of the victim, as this data is not of public interest because it lacks relevance for the information that is allowed to be transmitted (SSTC 20/1992, of February 20; 219/1992, of December 3; 232/1993, of July 12; 52/2002, of February 25; 121/2002, of May 20, and 127/2003, of June 30). Thus, this is currently recognized by Law 4/2015, of April 27, on the Statute of the Victim of Crime, in force since October 28, 2015, when it warns of the need "from public authorities [to offer] a response as broad as possible, not only legal but also social, to the victims."

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not only as a means of repairing the damage within the framework of a criminal process but also as a means of minimizing other traumatic effects on a moral level that their condition may generate, all of which is independent of their procedural situation. Therefore, this Statute, in line with European regulations on the matter and with the demands posed by our society, aims, starting from the recognition of the dignity of victims, to defend their material and moral assets and, with that, those of society as a whole." In cases such as those raised in this appeal, this Court must give relevance to the prevalence of the victim's right to image over informational freedoms, as the graphic information became idle or superfluous due to the lack of real interest in the victim's photograph for the transmission of information, in this case, the apparent commission of homicide and subsequent suicide" (the emphasis is ours).

We will add the Supreme Court ruling, from its First Civil Chamber, 272/2011 of April 11, 2011 (rec. 1747/2008), which, regarding the necessary data to provide information and the limits to public interest, states that "b) Trivial information is not protected (ATC 75/2006), but the act of providing unnecessary data in a case of rape (the full name, the initials of the surnames, the street address where the victim lived) that have no community relevance, do not respect privacy, only seek to satisfy curiosity, cause disturbances or discomfort, and unnecessarily reveal aspects of personal and private life, allowing neighbors, close persons, and family members to fully identify the victim and gain detailed knowledge of a seriously harmful act against their dignity (STC 185/2002) or about a disease that has no public interest and directly affects the irreducible sphere of intimacy and is revealed for the sake of a mere joke or jest (STC 232/1993);".

Likewise, the Supreme Court ruling, from its First Civil Chamber, Judgment 661/2016 of November 10, 2016 (rec. 3318/2014), regarding the capture and dissemination in court of the image of a victim of gender violence, stated that "1.^a) The interest of the questioned information and the right of the defendant television channel to broadcast images recorded during the oral trial of the criminal case is not disputed, as there is no limitation in this regard agreed upon by the judicial body.

2.^a) The only contentious point is, therefore, whether the identification of the plaintiff as a victim of the crimes judged in that criminal case, through close-ups of her face and the mention of her name and place of residence on 31/03/2022, was also included in the fundamental right of the defendant television channel to transmit truthful information or, on the contrary, was limited by the fundamental rights of the plaintiff to her personal privacy and her own image.

3.^a) Regarding this issue, the jurisprudence has recognized the general interest and public relevance of information about criminal cases (judgment 547/2011, of July 20), which is accentuated in cases of physical and psychological abuse (judgments 128/2011, of March 1, and 547/2011, of July 20), but it has also pointed out, concerning the identification of the individuals involved in the trial, that the accused and the victim are not on an equal footing, as for the former, complete identification is permissible, and not just by their initials, due to the nature and social significance of the crimes of abuse (judgment 547/2011).

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of July 20).

[...]

6.^a) In conclusion, the defendant television channel should have acted with the prudence of a diligent

professional and avoided broadcasting images that represented the appellant in close-up, either by refraining from airing the corresponding shots or by using technical procedures to blur her features and prevent her recognition (judgment 311/2013, of May 8). Likewise, it should have avoided mentioning her first name, as this information, insufficient by itself to constitute an unlawful intrusion, became relevant when pronounced on screen simultaneously with the image of the claimant and when the mention of her place of residence was added, all of which were unnecessary for the essence of the content of the information, as demonstrated by the news about the same trial published the following day in other media.

7.^a) The identification of the claimant through her image and the indicated personal data, and its direct link to an episode of gender-based violence and other serious crimes, when the simultaneous or subsequent revelation of data regarding how the victim and her aggressor met and the manner in which the criminal acts occurred was foreseeable, implies that the loss of anonymity violated both the claimant's right to her own image, due to the broadcasting of her physical features, and her personal and family privacy, to the extent that reserved data pertaining to her private life (such as having gone online to start a relationship or the intimate content of some of her conversations), which lacked offensive substance in a situation of anonymity, gained such substance from the moment any person who watched those news programs and resided in the victim's locality could know to whom they were referring. Thus, the psychological harm inherent to her condition as a victim of crimes was compounded by the moral damage consisting of the disclosure of private life data that she had not consented to make public.” (the underlining is ours).

As we can see, there is a clear reference to the excessive treatment of personal data (some of which are not of an intimate nature) to provide the information, considering them entirely unnecessary given the concurrent circumstances. Sometimes the courts refer to intimate data, but at other times it concerns personal data that is not intimate, such as, for example, the image of a natural person obtained from a photograph published on a social network or the name and surname.

. Balance between the fundamental right to freedom of information and the fundamental right to the protection of personal data.

In the specific case examined, as we have indicated, the entity EL ESPAÑOL published, on the website referred to in the facts, the image of the claimant to illustrate a news story about social networks, in which her name is also mentioned, inserting links that led to the video subject to the claim that has motivated this sanctioning procedure.

Thus, it is not a matter, as in other cases examined jurisprudentially, of giving precedence to one fundamental right over another, having to choose which carries more weight in a specific case, but rather of finding a balance between

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both to achieve the purpose of the first without undermining the second.

The reconciliation of both rights is nothing new, as the European legislator mandates such reconciliation in Article 85 of the GDPR.

As we have seen previously, the fundamental right to freedom of information is not unlimited, since the jurisprudential interpretation when confronting it with other rights and freedoms does not allow it in all cases and with full breadth; rather, despite the prevalence that courts usually grant it, it can be limited by other fundamental rights that must also be respected. This limitation is observed when the personal data provided was unnecessary for the essence of the content of the information.

In this case, the image of the claimant and their voice, as well as their name, without constraining the provision of information, must be made compatible with the principle of data minimization, applicable to the manner, the medium in which the information is provided and disseminated due to the immediate impact on the personal data and the identification of the person.

Precisely because the public interest in the news is not denied in this specific case, it is not a matter of diminishing the fundamental right to freedom of information due to the prevalence of the fundamental

right to the protection of personal data, but rather of making them fully compatible so that both are absolutely guaranteed. That is, the freedom of information of the media is not called into question, but rather the balancing with the right to data protection based on the proportionality and necessity of publishing the specific personal data of the image or the name of the person. Such a situation could have been resolved by using technical procedures to prevent the recognition of the image and voice, both security measures, applied depending on the case in a routine manner by the media, and by not indicating the name of the claimant.

Furthermore, we must emphasize that the claimant is an anonymous person, and our Constitutional Court, in all STC 58/2018 of June 4, states that public authorities, public officials, and public figures or those engaged in activities that involve public notoriety "voluntarily accept the risk that their subjective personal rights may be affected by criticism, opinions, or adverse revelations and, therefore, the right to information reaches, in relation to them, its maximum level of legitimizing effectiveness, insofar as their life and moral conduct participate in the general interest with greater intensity than that of private individuals who, without a vocation for public projection, find themselves circumstantially involved in matters of public significance, to whom, consequently, a superior sphere of privacy must be recognized, which prevents granting general significance to facts or behaviors that would have it if referred to public figures."

The CJEU (Second Chamber) ruling of February 14, 2019, in case C 345/17, Sergejs Buivids mentions various criteria for weighing between the right to respect for privacy and the right to freedom of expression, among which are "the contribution to a debate of general interest, the notoriety of the affected person, the subject of the report, the previous behavior of the interested party, the content, the form and...

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the repercussions of the publication, the manner and circumstances in which information was obtained, and its veracity (see, in this regard, the judgment of the ECtHR of June 27, 2017, Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland, CE:ECHR:2017:0627JUD000093113, paragraph 165)".

Thus, a matter may be considered of general interest, of public relevance, not only because of the person involved but also because of the subject matter to which it refers. Both requirements must be met.

In the present case, (i) the claimant is not a public figure; rather, it is of interest that they are not recognized by third parties, in such a way that their fundamental rights are fully guaranteed; that is to say, we are not dealing with a person of public relevance, in the sense that such relevance is sufficient to understand that it entails, ex lege, a dispossession of their fundamental right to the protection of their personal data, and (ii) although we are dealing with facts "of public relevance," in the sense that they are revealed as "necessary" for the exposition of ideas or opinions of public interest, that necessity does not extend to providing data that identifies the claimant.

Therefore, as expressed by the Supreme Court in its judgment (civil) 697/2019, of December 19, 2019, the formation of a free public opinion does not require, nor justifies, that the fundamental right to one's own image [in this case to the protection of personal data] be affected with such gravity and in a manner that does not maintain the necessary connection with the identification of the person subject to the information.

VI

Typification and qualification of the infringement for the purposes of prescription

In accordance with the evidence presented, in the present case, it is considered that EL ESPAÑOL has processed data that was excessive as it was not necessary for the purpose for which it was processed.

Thus, the established facts constitute an infringement, attributable to EL ESPAÑOL, of Article 5.1(c) of the GDPR, with the scope expressed in the previous Legal Foundations, which implies the commission

of the infringement typified in Article 83.5, paragraph a) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states that:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; In this regard, the LOPDGDD, in its Article 71, establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

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For the purposes of the statute of limitations, Article 72 of the LOPDGDD states:

Article 72. Very serious infringements.

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.”

VII

Sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented in accordance with Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the

financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in the

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paragraph 2 of the cited article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The ongoing nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In this case, considering the severity of the established infringement, particularly regarding the consequences that its commission causes to the claiming party, the imposition of a fine is warranted, in addition to the adoption of measures.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Thus, the condition of a medium-sized enterprise and the turnover of the claimed party are considered (...).

In accordance with the indicated provisions, for the purpose of determining the amount of the fine to be imposed in this case, it is considered appropriate to graduate it according to the following criteria established by the transcribed provisions:

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Article 83.2.a) of the GDPR:

Nature, severity, and duration of the infringement: the Agency considers that the nature of the infringement is very serious as it results in a loss of disposition and control over personal data for the individual, as it is disseminated over the internet without restrictions.

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Article 83.2.b) of the GDPR.

Intentionality or negligence in the infringement: although the Agency considers that there was no intentionality on the part of the media outlet, it concludes that it was negligent in not ensuring a procedure that guaranteed the protection of personal data in such sensitive circumstances.

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Article 83.2.g) of the GDPR.

Categories of personal data affected by the infringement: although "Special categories of personal data," as defined by the GDPR in Article 9, have not been affected, the personal data referred to in the proceedings (image and voice of the claiming party) has a particularly sensitive nature, as it allows...

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the prompt identification of the person and increases the risks to their privacy.

Considering the factors outlined, the assessment of the fine for the violation of Article 5.1.c) of the GDPR is 10,000 euros (ten thousand euros).

VIII

Adoption of measures

The violations in this matter may lead to the imposition on the responsible party of the obligation to adopt appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, which states that each supervisory authority may “order the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In such a case, this Agency may require the responsible entity to, within the determined timeframe, adjust its actions to comply with personal data protection regulations, to the extent expressed in the Legal Grounds of this agreement.

This act establishes the violations committed and the facts that lead to the breach of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully understands their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, it is important to clarify that adjusting actions to the regulations imposes the definitive cessation of the processing of personal data referred to in the procedure, with the definitive removal of such data from the website “elespanol.com” (link to the video, photograph, and name).

This adjustment can be made by completely removing the content accessible through the URL mentioned in the proceedings, or by applying the methods permitted by technology to prevent the identification of the complainant, or by deleting their personal data (image, voice, and name) from the published content.

It must be carried out in such a way that it prevents access to personal data, its dissemination, and the availability of the original by third parties, avoiding, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by internet users of the published content. In any case, its preservation will be guaranteed for the purposes of safeguarding evidence that may be necessary during the course of the police or administrative investigation or the judicial process that may be initiated, including any appeals that may be filed against this.

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resolution.

However, it should be noted that within the framework of the preliminary investigation actions carried out by this Agency, it was agreed to require the cessation of processing indicated from EL ESPAÑOL, as a provisional measure subsequently confirmed in the agreement to open the present procedure. Therefore, the measure proposed is equivalent to making the precautionary measure imposed definitive.

However, considering that EL ESPAÑOL complied with the order to adopt the provisional measure by definitively removing the news referred to in Proven Fact Three, it is not appropriate to make any new requirement for the adoption of adjustment measures in this resolution.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the

graduation of the sanctions whose existence has been established,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the entity EL LEÓN DE EL ESPAÑOL PUBLICACIONES, S.A., with NIF A87115226, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the same Regulation, and qualified as very serious for the purposes of prescription in Article 72.1.a) of the LOPDGDD, a fine of 10,000 euros (ten thousand euros).

SECOND: TO CONFIRM, elevating it to definitive, the order for the adoption of measures agreed on 09/09/2022, during the preliminary investigation actions, and confirmed in the agreement to open the present sanctioning procedure. Considering that the entity EL LEÓN DE EL ESPAÑOL PUBLICACIONES, S.A. complied with the requirement to adopt the provisional measure by definitively removing the content subject to the actions, this agreement does not give rise to any new requirement for the adoption of adjustment measures by said entity.

THIRD: TO NOTIFY this resolution to EL LEÓN DE EL ESPAÑOL PUBLICACIONES, S.A.

FOURTH: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. This provisional suspension would be considered terminated if the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this agreement for the adoption of provisional measures, or if the appeal is filed and a request for its provisional suspension is not made in the same procedure to the judicial body.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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